

23STCV16399 23STCV16399

County: los-angeles

Division: Civil Law and Motion

Department: 731

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Case Number: 23STCV16399 Hearing Date: September 10, 2026 Dept: 731

[TENTATIVE] ORDER RE: MOTION

OF DEFENDANTS TO SEAL EXHIBITS 2 TO 6 OF PLAINTIFF'S OPPOSITION TO DEFENDANTS'
MOTION TO QUASH AND REQUEST FOR SANCTIONS AGAINST PLAINTIFF AND HER COUNSEL,
FAHIM FARIVAR, ESQ. FOR \$3,325.00

Moving Party: Defendants, Abner Partiyeli, Farshid Partiyeli,
Robertson Regency Center, LLC, 914 Holding Group LLC, Clara Industrial Holding,
LLC, Euro-Cuisine Inc., and Westlake Spring, LLC

Opposing Party: Plaintiff, Jaleh Elghanian [Notice of Non-Opposition]

Notice: OK

Background Facts

Now before the Court is Defendants'
motion to seal Exhibits 2 to 6 attached to the Declaration of Fahim Farivar,
Esq., dated June 3, 2026, and filed in support of a June 3, 2026, opposition by
Plaintiff to a motion by Defendants to quash various subpoenas served by
Plaintiff for business records.

Exhibit 2 was attached to the
electronic copy of the June 3rd declaration, while Exhibits 3 to 6 were lodged
with the Court on June 3, 2026.

Defendants' motion is unopposed by
Plaintiff, who has filed a notice of non-opposition to Defendant's motion.

Defendants' motion to seal is now
before the Court.

Motion to Seal

Legal Standard

"The public has a First Amendment
right of access to civil litigation documents filed in court and used at trial
or submitted as a basis for adjudication." (Savaglio v. Wal-Mart Stores,
Inc. (2007) 149 Cal.App.4th 588, 596 (Savaglio), citing NBC
Subsidiary (KNBC-TV), Inc. v. Superior Court (1999) 20 Cal.4th 1178,
1208-1209, fn. 25.)

Therefore, before a trial court
orders a record sealed, it must hold a hearing and make express findings set
forth in California Rules of Court, rule 2.550, subdivision (d): (1) there
exists an overriding interest that overcomes the right of public access to the
record; (2) the overriding interest supports sealing the record; (3) a
substantial probability exists that the overriding interest will be prejudiced
if the record is not sealed; (4) the proposed sealing is narrowly tailored; and
(5) no less restrictive means exist to achieve the overriding interest. (Savaglio,
supra, at p. 596; Cal. Rules of Court, rule 2.550, subd. (d).) A court's
order allowing documents to be filed under seal must contain express factual
findings establishing these five factors. (Cal. Rules of Court, rule 2.550(d).)

Discussion

The Court finds in favor of sealing
the record, with a caveat to relief below.

Here, a review of Exhibits 2-6
shows an overriding interest in the subject documents, chiefly consisting of financial
information and financial data. A person has a right to prevent disclosure of
information about personal finances, including information about bank accounts,
assets, and debts. (See *In re Ins. Installment Fee Cases* (2012) 211
Cal.App.4th 1395, 1428 [information privacy in personal financial affairs]; *Ameri-Med
Corp. v. Worker's Comp. Appeals Bd.* (1996) 42 Cal.App.4th 1260, 1286-1287 (Ameri-Med)
[limited informational privacy in corporation's financial information unrelated
to the claims asserted].)

This overriding interest supports sealing of the record at issue, which is presently open to the public as to Exhibit 2, and where a failure to seal could lead to publishing of Exhibits 3 to 6. The keeping of this information in the public domain will also cause prejudice if the record is not sealed insofar as there will remain a public disclosure of the very information subject to the overriding interest. Last, but with a caveat below, the request is narrowly tailored to financial information and data, where no less restrictive means exist to protect the overriding interest.

Moreover, Plaintiff supports sealing the record via the August 27, 2026, notice of non-opposition.

Sufficient grounds thus exist for relief.

c. Conclusion

Defendants' motion to seal is GRANTED.

The Clerk SHALL strike the June 3rd declaration from the record, and Plaintiff SHALL refile the June 3, 2026, declaration, with no changes except for as to Exhibit 2, to be redacted only as to bank account information, and with Exhibits 4 to 6 remaining as is, i.e., rather than showing any exhibit, simply containing a 'conditionally filed' slip page.

Defendants are ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at smcdept731@lacourt.org indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the

tentative, they should arrange to appear remotely.